FARM ANIMAL TRACKING SERVICE AGREEMENT

1 PARTIES AND CUSTOMER DETAILS

This Agreement is made between **Msengana Eco Tracker** (the "Service Provider") and the customer whose details appear below (the "Customer"), and takes effect on the date of the last signature in Section 13.

CUSTOMER DETAILS	
Full name and surname	
ID number	
Cell phone number (used to activate and communicate with the device)	
Email address	
Physical address (also the address for legal notices)	
Farm name and location (GPS coordinates or address)	

2 DEFINITIONS

- **"Device"** means each Msengana Eco Tracker GPS tracking unit supplied to the Customer, including its battery, SIM card, casing, and attachments, as recorded on the Service Provider's delivery and installation record.
- **"Service"** means the location-tracking and related messaging service linked to the Device, including technical support limited to the tracking system.
- **"Fees"** means the monthly service fee and any other amounts payable by the Customer under this Agreement, as stated in the Service Provider's quote or invoice.
- **"Animal"** means any livestock or animal to which a Device is attached.
- **"Written notice"** means notice by email, SMS, or WhatsApp to the details given by the party concerned, or by hand delivery or registered post to the physical address in Section 1.

3 THE SERVICE

3.1 The Service Provider will supply and install the Device(s) and provide the Service to the Customer for the duration of this Agreement.

3.2 The Service lets the Customer monitor the approximate location of their Animals. The Service is a monitoring aid only. The Service Provider does **not** guarantee the prevention of theft, loss, injury, or death of any Animal, nor the recovery of any Animal.

3.3 The Service Provider is **not** responsible for searching for, retrieving, or recovering lost or stolen Animals, or for reporting them to the authorities. These remain the sole responsibility of the Customer.

3.4 The Customer is responsible for monitoring their Animals using the Service, including checking the status of an Animal whenever a geofence alert is received or location updates stop.

3.5 The Customer understands and accepts that Device performance depends on factors outside the Service Provider's control, including GPS accuracy, cellular network coverage, battery condition, weather, terrain, and the Customer's phone and airtime. Location data may be delayed, inaccurate, or unavailable, and alerts may not always be delivered.

4 CUSTOMER REQUIREMENTS

The Customer must:

4.1 own or have access to a smartphone compatible with the Service;

4.2 keep enough airtime and mobile data to receive Device messages and use the Service;

4.3 provide a correct cell phone number and farm location, which are required to activate the Device so that it communicates only with the Customer or a person the Customer has authorised in writing;

4.4 keep the Device details confidential, and not share them with anyone not authorised by the Customer, to reduce the risk of theft or unauthorised access;

4.5 notify the Service Provider in writing within 7 days of any change to their phone number, email address, or physical address.

5 FEES AND PAYMENT

5.1 The Customer must pay the Fees monthly in advance, on or before the due date stated on the Service Provider's invoice, into the bank account the Service Provider notifies in writing, using the Customer's name as the payment reference. Fees cover the cost of wireless data transmission and the Service.

5.2 The Device will be activated only after the Service Provider has confirmed receipt of the first payment in cleared funds.

5.3 **Late payment.** If a payment is more than 10 days overdue, the Service Provider may charge interest on the overdue amount at the rate of 5% of the overdue amount per month or part of a month, or the maximum rate allowed by law, whichever is lower.

5.4 **Suspension.** If any amount remains unpaid 10 days after its due date, the Service Provider will send the Customer written notice demanding payment within 7 days. If the Customer still does not pay in full within that period, the Service Provider may suspend the Service and deactivate the Device until all overdue amounts are paid. The Service Provider is not liable for any loss, including loss of Animals, that happens while the Service is suspended for non-payment after such notice.

5.5 **Reactivation.** The Service Provider may charge a reasonable reactivation fee, notified to the Customer in writing, before restoring a suspended Service, which the Customer must pay together with all overdue amounts.

5.6 The Service Provider may adjust the Fees once a year by giving the Customer at least 30 days' written notice. If the Customer does not agree to the new Fees, the Customer may cancel under Section 9 before the new Fees take effect.

5.7 The Customer may not withhold, reduce, or set off any payment because of a dispute about the Service, unless the Service Provider agrees in writing.

6 DEVICE OWNERSHIP, USE, AND CARE

6.1 Ownership. The Device remains the property of the Service Provider at all times unless the Service Provider records in writing that the Customer has purchased it outright. The Customer may not sell, pledge, lend, or transfer the Device.

6.2 The Customer must not remove, open, disassemble, modify, reprogram, or tamper with the Device, its SIM card, or its casing. Any tampering voids any replacement or support obligation of the Service Provider for that Device, and the Customer must pay for the repair or replacement of the Device at the Service Provider's then-current price.

6.3 The Customer must take reasonable care of the Device and tell the Service Provider promptly if a Device is lost, stolen, or damaged.

6.4 Lost or damaged Devices. If a Device is lost, stolen, or damaged because of the Customer's negligence, misuse, or tampering, or is not returned when required under Section 9, the Customer must pay the Service Provider's then-current replacement price for each Device.

6.5 Replacement. The Service Provider will repair or replace, free of charge, a Device that fails because of a manufacturing defect, software malfunction, communication failure, or server issue, provided the failure is not caused by tampering, misuse, or damage by the Customer, an Animal, or any third party.

6.6 Software updates. The Service Provider may update the Device software or Service and will give the Customer notice in advance where reasonably possible. Temporary interruptions caused by planned updates or maintenance are not a breach of this Agreement.

7 INSTALLATION AND ANIMAL WELFARE

7.1 The Service Provider will install the Device, but does **not** catch, handle, or restrain the Animals. The Customer must provide adequate assistance and restrain the Animal safely during installation.

7.2 The Customer understands that attaching a Device carries risks, such as minor injury, irritation, or infection (for example, ear infections). The Customer accepts responsibility for the care, health, and treatment of their Animals, and for checking the Device and the attachment site regularly.

7.3 The Service Provider is not liable for injury, illness, or death of an Animal, except to the extent it is caused by the Service Provider's gross negligence or wilful misconduct.

8 SALE OR TRANSFER OF ANIMALS

8.1 The Customer must give the Service Provider at least 7 days' written notice before selling, transferring, slaughtering, or otherwise disposing of an Animal wearing a Device.

8.2 The Customer must make the Animal available so the Device can be deactivated and removed, or return the Device to the Service Provider, before the transaction is completed.

8.3 The Customer remains liable for the Fees and for the Device until the Device is returned or deactivated and removed by the Service Provider.

9 TERM, CANCELLATION, AND OUTSTANDING AMOUNTS

9.1 This Agreement starts on the date of the last signature in Section 13 and continues month to month until cancelled.

9.2 Either party may cancel this Agreement by giving the other at least **30 days' written notice**. Fees remain payable until the end of the notice period.

9.3 Not paying, or not using the Service, is **not** cancellation. The Customer must give written notice to cancel, and Fees continue to accrue until the notice period ends.

9.4 The Service Provider may cancel this Agreement immediately by written notice if the Customer (a) fails to remedy a breach within 7 days of written notice, (b) tampers with or sells a Device, or (c) gives false information.

9.5 **On cancellation**, the Customer must (a) pay all Fees and other amounts owing up to the end of the notice period, and (b) return all Devices in reasonable condition (fair wear and tear excepted) within 7 days, or allow the Service Provider access to remove them. Devices not returned within that time will be charged at the replacement cost in clause 6.4.

9.6 Any amount that is due remains payable after cancellation. If the Customer fails to pay, the Service Provider may recover it through legal proceedings, and the Customer will be liable for reasonable collection costs and legal costs on the attorney-and-own-client scale, to the extent allowed by law.

10 LIMITATION OF LIABILITY

10.1 To the maximum extent allowed by law, the Service Provider is not liable for any indirect, consequential, or special loss or damage, including loss of Animals, livestock value, profit, or business, arising from the use of, or inability to use, the Service or Device.

10.2 Where the Service Provider is held liable despite 10.1, its total liability will not exceed the Fees paid by the Customer in the 3 months before the event giving rise to the claim.

10.3 Nothing in this Agreement excludes liability that cannot lawfully be excluded, including liability for gross negligence or fraud, or limits the Customer's rights under the Consumer Protection Act 68 of 2008, where it applies.

10.4 The Service Provider is not liable for any failure or delay caused by events beyond its reasonable control, including network or cellular outages, GPS signal loss, power failure, load shedding, theft or vandalism, natural disasters, or government action.

11 PROTECTION OF PERSONAL INFORMATION (POPIA)

11.1 The Service Provider will process the Customer's personal information (including name, ID number, phone number, email address, and location data) in line with the Protection of Personal Information Act 4 of 2013 (POPIA).

11.2 The information is collected only to (a) enter into and administer this Agreement, (b) activate the Device and provide the Service, (c) invoice and collect payments, and (d) contact the Customer about the Service. It will not be sold or shared with third parties, except service providers needed to deliver the Service (for example, mobile network operators and hosting providers) or where the law requires.

11.3 The Service Provider will take reasonable technical and organisational steps to keep the information secure. The Customer may ask to see, correct, or delete their personal information by contacting the Service Provider, subject to legal retention requirements.

11.4 The Customer consents to the Service Provider processing their personal information as described in this Section.

12 GENERAL TERMS

12.1 **Entire agreement.** This Agreement is the whole agreement between the parties and replaces all earlier discussions and promises about the Service. No promise or statement not written in this Agreement binds either party.

12.2 **Changes.** Any change to this Agreement must be in writing and signed by both parties, except for Fee adjustments under clause 5.6 and updates the Service Provider notifies under clause 6.6.

12.3 No waiver. If a party does not enforce a right, it does not lose that right. Any waiver must be in writing.

12.4 Severability. If any part of this Agreement is found invalid or unenforceable, the rest remains in force.

12.5 Cession. The Customer may not transfer their rights or obligations without the Service Provider's written consent. The Service Provider may transfer its rights and obligations to a successor to its business, with notice to the Customer.

12.6 Notices and electronic communication. Notices must be sent to the details each party has given the other. Notice by email, SMS, or WhatsApp is treated as received on the next business day after it is sent. The physical address in Section 1 is the Customer's chosen address for legal service (*domicilium citandi et executandi*).

12.7 Disputes. The parties will first try to resolve any dispute through good-faith discussion, then mediation. If that fails, the dispute will go to arbitration under South African law. Arbitration is not required for the Service Provider to claim unpaid Fees, which it may do in any court of competent jurisdiction.

12.8 Governing law. This Agreement is governed by the laws of the Republic of South Africa.

12.9 Customer's acknowledgement. The Customer confirms that they are at least 18 years old, have the authority to enter into this Agreement, have read and understood it, have had the chance to ask questions, and agree to be bound by it.

13 SIGNATURES

CUSTOMER	
Full name and surname	
ID number	
Cell phone number	
Email address	
Signature	
Date	
Place signed	

SERVICE PROVIDER - MSENGANA ECO TRACKER	
Authorised representative	Bulungisa Msengana
Signature	
Date	